
CONFIDENTIAL DISCLOSURE AGREEMENT

Semiconductor IP Licensing Evaluation — Export-Controlled Technical Data

BETWEEN

Helix Semiconductor IP Holdings Inc. 1 Ridder Park Drive, San Jose, California 95131 Delaware Corporation | EIN 94-3012456 | EAR-Registered

— and —

NovaTech Solutions Inc. 450 Serra Mall, Palo Alto, California 94305 | Delaware Corporation (the "Receiving Party")

Reference: **HSIP-CDA-EAR-2024-0044**

Date: **18 March 2025**

Governing Law: **State of Delaware, United States**

Confidentiality Level: **EXPORT CONTROLLED — EAR ECCN 3E001 / 3E002**

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EAR WARNING: INFORMATION DISCLOSED UNDER THIS AGREEMENT MAY BE SUBJECT TO THE U.S. EXPORT ADMINISTRATION REGULATIONS (EAR), 15 C.F.R. PARTS 730-774, ADMINISTERED BY THE BUREAU OF INDUSTRY AND SECURITY (BIS). THIS INCLUDES EXPORT CONTROL CLASSIFICATION NUMBERS (ECCN) 3E001 (TECHNOLOGY FOR DEVELOPMENT/PRODUCTION OF INTEGRATED CIRCUITS) AND 3E002 (CMOS FABRICATION TECHNOLOGY). VIOLATIONS MAY RESULT IN CRIMINAL PENALTIES OF UP TO USD 1,000,000 PER VIOLATION AND TWENTY (20) YEARS IMPRISONMENT UNDER 50 U.S.C. 4819. THE RECEIVING PARTY SHALL COMPLY WITH ALL APPLICABLE EXPORT LAWS.

1. DEFINITIONS

1.1 In this Agreement:

"Agreement" means this Confidential Disclosure Agreement;

"BIS" means the U.S. Department of Commerce, Bureau of Industry and Security;

"Confidential Information" has the meaning in Section 2;

"Deemed Export" means a release of EAR-Controlled Technical Data to a non-US national within the United States, constituting an export to the country of nationality of the non-US national under 15 C.F.R. 734.13;

"EAR" means the Export Administration Regulations, 15 C.F.R. Parts 730-774, as amended;

"EAR-Controlled Technical Data" means technical data subject to the EAR, specifically including technology classified under **ECCN 3E001** (technology for the development or production of integrated circuits or semiconductor devices) and **ECCN 3E002** (technology for the production of CMOS integrated circuits and related substrates);

"Effective Date" means 18 March 2025;

"GDSII" means the Graphic Design System II stream file format used for integrated circuit layout data;

"Mask Work" means a series of related images representing the predetermined three-dimensional pattern of metallic, insulating, or semiconductor material deposited on a semiconductor chip, as protected under the Semiconductor Chip Protection Act, 17 U.S.C. 901-914 (SCPA);

"Purpose" means the evaluation by the Receiving Party of a potential semiconductor IP licensing arrangement with Helix;

"RTL" means register-transfer level design abstraction;

"Receiving Party" means NovaTech Solutions Inc.;

"SCPA" means the Semiconductor Chip Protection Act, 17 U.S.C. 901-914;

2. CONFIDENTIAL INFORMATION — ECCN-CLASSIFIED SCOPE

2.1 **"Confidential Information"** means all proprietary information disclosed by Helix to the Receiving Party in connection with the Purpose, including: (a) source code, RTL designs, GDSII layout files, and process design kit (PDK) data; (b) **Mask Work data and associated layout information protected under the SCPA**; (c) technical specifications, performance benchmarks, and test methodologies; (d) fabrication process parameters and yield data; (e) **EAR-Controlled Technical Data classified under ECCNs 3E001 and 3E002**; and (f) any analyses, compilations, or derivative works based on the foregoing.

2.2 The Receiving Party specifically acknowledges that Mask Work data carries independent intellectual property protection under the SCPA separate from any NDA obligation and that the Receiving Party's

obligations hereunder are in addition to and do not limit any statutory obligations under the SCPA.

2.3 Exclusions — EAR Override. Standard exclusions apply for publicly available information, prior knowledge, and independent development. **All four standard exclusions are expressly and irrevocably excluded from application to any information subject to EAR classification under ECCNs 3E001 or 3E002, regardless of its availability in the public domain, prior knowledge, or independent development by the Receiving Party.**

3. OBLIGATIONS

3.1 Deemed Export Compliance. The Receiving Party expressly acknowledges that the internal disclosure of EAR-Controlled Technical Data to non-US national employees of the Receiving Party constitutes a Deemed Export. **The Receiving Party shall, at its own cost and expense, obtain all necessary BIS export licences, technology control plans, or other authorisations before sharing any EAR-Controlled Technical Data with any non-US national, including its own employees, contractors, interns, and temporary workers.** The Receiving Party shall maintain a Technology Control Plan (TCP) acceptable to BIS and shall provide a copy to Helix upon request.

3.2 Access Controls. EAR-Controlled Technical Data shall be stored in a segregated, access-controlled environment accessible only by authorised US Persons. Physical access logs shall be maintained and provided to Helix upon request.

4. TERM — DUAL TIER

4.1 Non-EAR Confidential Information: seven (7) years from the Effective Date.

4.2 Perpetual EAR Obligations. Obligations with respect to EAR-Controlled Technical Data (ECCNs 3E001 and 3E002) shall be **perpetual and shall not expire**. The Receiving Party acknowledges this is required by U.S. export control law.

5. RETURN AND DESTRUCTION — ECCN CERTIFICATION

5.1 Destruction of EAR-Controlled Technical Data: NIST SP 800-88 compliant methods. Certificates of destruction shall specifically identify: (a) the ECCN classification of each item destroyed; (b) the destruction method; (c) date and location; signed by a designated export compliance officer.

6. INTELLECTUAL PROPERTY — DERIVATIVE WORKS ASSIGNMENT

6.1 No Licence. No licence or right in any Confidential Information or Intellectual Property Rights is granted hereunder.

6.2 Assignment of Derivative Works. The Receiving Party hereby irrevocably assigns, and agrees to assign, to Helix all right, title, and interest (including all patent, copyright, trade secret, Mask Work, and all other intellectual property rights) in any **improvement, adaptation, modification, derivative work, or invention** created by the Receiving Party or any of its personnel that: (a) uses, incorporates, or is derived from any Confidential Information; or (b) **could not reasonably have been created without access to Helix's Confidential Information**. This assignment is effective immediately and automatically upon creation of any such work, without further act, writing, or payment.

6.3 The Receiving Party shall promptly disclose all such works and inventions to Helix and shall execute all documents and instruments required to perfect and record the assignments in Section 6.2 in all jurisdictions.

15. NOTICES

15.1 Any notice, demand, request, or other communication required or permitted to be given under or in connection with this Agreement shall be in writing and shall be delivered: (i) by hand; (ii) by internationally recognised overnight courier service; (iii) by registered or certified mail, return receipt requested, postage prepaid; or (iv) by electronic mail with confirmation of receipt and a hard copy sent by one of the foregoing methods within two (2) business days of transmission.

15.2 Notices shall be addressed as follows:

If to Helix Semiconductor IP Holdings Inc.:

1 Ridder Park Drive, San Jose, California 95131, United States

Attention: SVP & General Counsel, Helix Semiconductor IP Holdings Inc.

If to NovaTech Solutions Inc.:

450 Serra Mall, Palo Alto, California 94305, United States

Attention: General Counsel, NovaTech Solutions Inc.

15.3 Notices shall be deemed to have been duly given: (a) upon delivery, if delivered by hand; (b) on the next business day after despatch, if sent by overnight courier; (c) on the fifth (5th) business day after posting, if sent by registered mail; or (d) upon electronic confirmation of receipt, if sent by email, provided that the hard copy is despatched within two (2) business days thereafter. Either party may change its notice address by giving written notice to the other party in accordance with this Section 15.

16. ASSIGNMENT

16.1 Neither party may assign, transfer, delegate, or otherwise dispose of any of its rights or obligations under this Agreement, whether by operation of law or otherwise, without the prior written consent of the other party, such consent not to be unreasonably withheld, conditioned, or delayed. Any purported assignment in violation of this Section 16 shall be null and void and of no force or effect.

16.2 Notwithstanding Section 16.1, either party may, without the consent of the other party, assign its rights and obligations under this Agreement to: (a) an affiliate of the assigning party; or (b) a successor entity in connection with a merger, acquisition, reorganisation, or sale of all or substantially all of the assigning party's assets or business to which this Agreement relates, provided that: (i) the assignee assumes in writing all of the assigning party's obligations under this Agreement; (ii) the assigning party provides the other party with prompt written notice of such assignment; and (iii) the assignment does not result in a reduction of the protections afforded to the other party under this Agreement.

17. ENTIRE AGREEMENT

17.1 This Agreement, together with any schedules and exhibits attached hereto and incorporated herein by reference, constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous negotiations, representations, warranties, understandings, letters of intent, term sheets, and agreements, whether oral or written, relating to such subject matter. Each party acknowledges that it has not relied on any representation, warranty, or undertaking that is not set out in this Agreement.

17.2 The parties agree that the recitals set out at the beginning of this Agreement form part of this Agreement and are incorporated herein by reference.

18. AMENDMENTS

18.1 No modification, amendment, or waiver of any provision of this Agreement shall be effective unless made in writing and duly executed by authorised representatives of both parties. No oral amendment or modification of this Agreement shall be binding on either party regardless of any course of dealing or course of performance between the parties.

19. SEVERABILITY

19.1 If any provision of this Agreement is held by a court or tribunal of competent jurisdiction to be invalid, illegal, void, or unenforceable under applicable law, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable, and the validity, legality, and enforceability of the remaining provisions of this Agreement shall not in any way be affected or impaired thereby, provided that the economic and legal substance of the transactions contemplated by this Agreement is not affected in any manner materially adverse to either party.

19.2 If any provision of this Agreement is held to be invalid or unenforceable as written but would be valid or enforceable if modified, such provision shall apply with the modification necessary to make it valid and enforceable under applicable law, and the parties agree to negotiate in good faith a replacement provision that, to the greatest extent possible, achieves the original intent and economic effect of the invalid or unenforceable provision.

20. WAIVER

20.1 No failure or delay by either party in exercising any right, power, or privilege under this Agreement shall operate as a waiver thereof, nor shall any single or partial exercise of any right, power, or privilege preclude any other or further exercise thereof or the exercise of any other right, power, or privilege. No waiver of any provision of this Agreement shall be effective unless made in writing and signed by a duly authorised representative of the waiving party.

20.2 The rights and remedies provided in this Agreement are cumulative and not exclusive of any other rights or remedies that a party may have at law or in equity.

21. NO PARTNERSHIP, AGENCY, OR JOINT VENTURE

21.1 Nothing in this Agreement shall be construed to create a partnership, joint venture, employment relationship, or agency relationship between the parties. Neither party shall have any right, power, or authority to bind or obligate the other party in any manner or make any representation on behalf of the other party without the prior written consent of such other party. Each party shall remain an independent contractor in relation to the other party.

22. COUNTERPARTS AND ELECTRONIC SIGNATURES

22.1 This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which, taken together, shall constitute one and the same instrument. Delivery of an executed counterpart of a signature page by electronic transmission (including PDF, DocuSign, or similar electronic signature platform) shall be equally effective as delivery of a manually executed counterpart. A party that delivers a counterpart by electronic transmission shall promptly thereafter deliver a manually executed counterpart to the other party, but failure to do so shall not affect the validity or enforceability of this Agreement.

22.2 Electronic signatures applied through a recognised electronic signature platform (including DocuSign, Adobe Sign, or equivalent) shall constitute valid and binding signatures for the purposes of this Agreement and shall have the same legal effect as handwritten signatures to the fullest extent permitted by applicable

law, including the Electronic Signatures in Global and National Commerce Act (E-SIGN Act), the Uniform Electronic Transactions Act (UETA), and any applicable foreign equivalent.

23. FORCE MAJEURE

23.1 Neither party shall be in breach of this Agreement or liable to the other party for any delay in performing, or failure to perform, any of its obligations under this Agreement (other than payment obligations) if and to the extent that such delay or failure results from events, circumstances, or causes beyond its reasonable control, including acts of God, pandemic, epidemic, war, terrorism, civil disturbance, government action, regulatory change, or failure of third-party telecommunications or internet infrastructure (a "Force Majeure Event"). In such circumstances, the affected party shall: (a) notify the other party in writing promptly upon becoming aware of the Force Majeure Event; (b) use all reasonable endeavours to mitigate the effect of the Force Majeure Event; and (c) resume performance as soon as reasonably practicable after the cessation of the Force Majeure Event.

23.2 If a Force Majeure Event continues for a period in excess of sixty (60) consecutive days, either party may terminate this Agreement on ten (10) days' written notice to the other party, without liability to either party for such termination.

24. GOVERNING LAW AND DISPUTE RESOLUTION

24.1 **Governing Law.** This Agreement and any dispute, controversy, or claim arising out of or in connection with it or its subject matter, formation, existence, negotiation, validity, termination, or enforceability (including non-contractual disputes or claims) shall be governed by and construed in accordance with the laws of **State of Delaware, United States**, without regard to its conflict of laws principles.

24.2 **Jurisdiction.** Each party irrevocably agrees that the courts of **the Court of Chancery of the State of Delaware and the federal courts of the District of Delaware** shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with this Agreement or its subject matter or formation. Each party irrevocably waives any objection to the courts of the Court of Chancery of the State of Delaware and the federal courts of the District of Delaware on the grounds of inconvenient forum or any other grounds.

24.3 **Injunctive Relief.** Notwithstanding the foregoing, either party may seek urgent interlocutory or interim injunctive relief from any court of competent jurisdiction without waiving its right to invoke the dispute resolution procedure set out in this Section 24.

IN WITNESS WHEREOF

EXECUTED as a legally binding agreement on the date first written above.

SIGNED for and on behalf of

Helix Semiconductor IP Holdings Inc.

SIGNED for and on behalf of

NovaTech Solutions Inc.

Signature: _____

Signature: _____

Print Name: [NAME]

Title: SVP & General Counsel

Date: _____

Witness Name: _____

Witness Sig.: _____

Print Name: [NAME]

Title: General Counsel

Date: _____

Witness Name: _____

Witness Sig.: _____